

Court No. - 38

Case :- WRIT - C No. - 31645 of 2018

Petitioner :- Arvind Kumar

Respondent :- State Of U.P. And 06 Others

Counsel for Petitioner :- Kripa Shanker Singh, Gaurav Singh

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble Abhinava Upadhya, J.

Hon'ble Rajiv Gupta, J.

By means of this writ petition, the petitioner has come to this Court disputing the electricity dues as determined by the Authorities.

According to claim of the petitioner, the last electricity bill that was given to the petitioner on 28.02.2014, is amounting to Rs. 85,065/-. The amount was however not paid by the petitioner.

Learned counsel for the petitioner submits that the petitioner is ready to pay the aforesaid electricity dues along with interest but now, a Recovery Citation has been issued for a sum of Rs.23,01,466/-.

Learned counsel for the petitioner submits that this amount by no stretch of imagination could be arrived at against the bill, which is only of Rs. 85,065/- issued to the petitioner in the year 2014.

Therefore, it appears that the petitioner disputes the electricity dues, for which he can approach the Executive Engineer under Section 6.5 of the U.P. Electricity Supply Code, 2005.

In case, such an application is filed within a week, the

same shall be considered and decided in accordance with law, as far as possible, within a period of one month from today.

For a period of one month, no coercive steps shall be taken against the petitioner towards the recovery of the amount pursuant to the recovery citation (Annexure 15 to the writ petition).

With the aforesaid observations, the writ petition is **disposed of.**

Order Date :- 18.9.2018
Arun Gangwar

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(Rajiv Gupta,J.) (Abhinava Upadhya,J.)